

23CHCV02725 23CHCV02725

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-08

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Case Number: 23CHCV02725 Hearing Date: September 8, 2026 Dept: F43

Dept. F43

Hearing Date: 09-08-26

Case # 23CHCV02725, Sanchez v. Southern
California Edison Co., et al.

Trial Date: 06-07-27

MOTION TO DEEM

REQUESTS FOR ADMISSION ADMITTED

MOVING PARTY: Defendant/Cross-Complainant County of Los
Angeles

RESPONDING PARTY: Plaintiff's Counsel Robert M. Klein

RELIEF REQUESTED

Order deeming the matters in defendant County
of Los Angeles' first set of requests for admission as true and admitted and imposing
\$1,200 in monetary sanctions against plaintiff and her counsel of record.

RULING: Motion is granted. The court awards defendant County \$600 in
monetary sanctions.

SUMMARY OF ACTION

Plaintiff Esperanza Sanchez (Plaintiff) filed this personal injury action on September 11, 2023, asserting a single negligence cause of action against defendants Southern California Edison and the County of Los Angeles. Plaintiff alleges she was injured on a sidewalk near Magic Mountain when her foot landed on a Southern California Edison electrical box. The County of Los Angeles (the County) filed a cross-complaint against Southern California Edison on September 20, 2024 and an answer to the Complaint on September 23, 2024.

On April 22, 2024, attorney Robert Klein substituted in as Plaintiff's counsel.

The County served Plaintiff by mail with its first set of requests for admission on November 14, 2024. (Declaration of Michael Gee, Exh. A.) From January 2, 2025 through April 7, 2025, defense counsel granted Plaintiff several extensions to serve objection-free responses, which Plaintiff's counsel agreed to. (See *id.*, Exh. B-D.) Throughout counsel's email exchanges, Plaintiff's counsel claimed he did not receive several emails that were sent by the County's counsel despite being copied on the emails. At some point before June 16, 2026, Plaintiff served her responses to the requests for admission responses, but the responses were unverified. (*Id.*, Exh. G.) The County's counsel requested verifications by June 20, 2026, or a motion would be filed. (*Id.*) Verifications were not served by the June 20, 2026, deadline.

On July 13, 2026, the County filed the instant motion to deem the matters in its first set of requests for admission to Plaintiff as true and admitted and to impose \$1,200 in monetary sanctions against Plaintiff and her counsel of record. No opposition brief was filed.

On August 19, 2026, plaintiff's counsel, Robert M. Klein, filed a declaration.

No reply has been filed.

ANALYSIS

A. Deeming Requests for Admission as True and
Admitted

When a responding party fails to timely serve answers to requests for admission, the demanding party may move for an order that “the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd. (b).) Responses to requests for admissions are due 30 days from the date the requests were served on the responding party. (Code Civ. Proc., § 2033.250, subd. (a).) Failure to respond within 30 days or a deadline set by the parties waives any objection, including those based on privilege or work product protection. (Code Civ. Proc § 2033.280, subd. (a).)

The court finds that the County properly served its requests for admission and granted several extensions. Although Plaintiff served responses, the responses remain unverified.

In his opposing declaration, attorney Klein claims he did not receive an email from the County about not receiving verifications, he would follow up with his client to get the verifications, and requests that the court not impose sanctions because there appear to be computer issues rather than an error or deliberate effort to avoid discovery. (Opposition Declaration ¶¶ 5-7.) Mr. Klein also states that on August 19, 2026, defense counsel stated responses were received but that counsel was unable to open the responses. (Id. ¶ 5.) However, Mr. Klein does not thoroughly explain the supposed computer issues and claims it has been difficult for him to keep up with emails these days.

Mr. Klein’s assertions do not provide a substantial justification for failing to serve verifications for the responses. Moreover, the instant motion was originally set for a hearing on August 26, 2026, but was continued to September 8, 2026. Yet, neither Plaintiff nor her counsel have provided an update as to the outstanding verifications.

As such, the court grants defendant County of Los Angeles’ motion and deems the matters in the County’s first set of requests

for admissions as admitted and true.

B. Sanctions

The County asks the court to impose \$1,200 in monetary sanctions against Plaintiff and her counsel of record. (Gee Decl. ¶ 11.)

The court must impose sanctions against the party or attorney, or both, whose failure to serve timely responses led to a motion to deem requests for admissions admitted, unless the court finds that the responding party served code-compliant proposed responses to the requests before the motion hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

The County is entitled to sanctions for the reasons stated above in Section A.

The County's attorney charges \$400 per hour. (Gee Decl. ¶ 11.) The request includes 1.0 hour preparing the motion, 1.0 hour replying to the opposition, and 1.0 hour preparing for and appearing at the motion hearing.

The requested hourly rate is reasonable, but the court reduces the time requested by 1.5 hours because no opposition was filed and the motion is virtually identical to the County's other motions to compel discovery responses.

Therefore, the court awards the County sanctions in the reduced amount of \$600.

CONCLUSION and ORDER

The court grants defendant County of Los Angeles' motion to deem the matters in its first set of requests for admission served on Plaintiff on November 14, 2024, as true and admitted.

The court awards defendant County \$600 in monetary sanctions. Plaintiff and her counsel of record are ordered to pay defendant County within thirty (30) days of the issuing of this order.

Defendant County of Los Angeles to give notice.